

SENATE CHAMBER

STATE OF OKLAHOMA

DISPOSITION

☒ FLOOR AMENDMENT

No. 1

☐ COMMITTEE AMENDMENT

(Date)

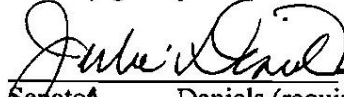
I move to amend House Bill No. 4440 by substituting the attached floor substitute (Request #3933) for the title, enacting clause and entire body of the measure.

Submitted by:



Senator Paxton

I hereby grant permission for the floor substitute to be adopted.



Senator Daniels (required)



Senator Rader

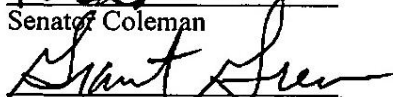
Senator Bergstrom

Senator Boren

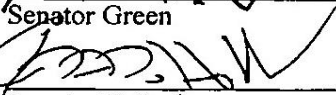
Senator Bullard



Senator Coleman



Senator Green



Senator Hall

Senator Hamilton



Senator Paxton, President Pro Tempore

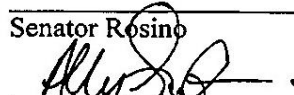
Senator Hicks

Senator Howard

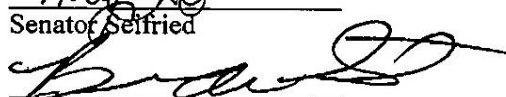
Senator Jech

Senator Murdock

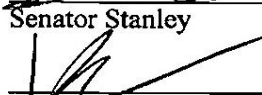
Senator Rosino



Senator Selfried



Senator Stanley



Senator Thompson

Senator Daniels, Majority Floor Leader

Note: Rules committee majority requires nine (9) members' signatures.

Paxton-DC-FS-HB4440

4/13/2026 10:54 AM

(Floor Amendments Only)

Date and Time Filed: 4/13/26

1:47PM 

☐ Untimely

☐ Amendment Cycle Extended

☐ Secondary Amendment

STATE OF OKLAHOMA

2nd Session of the 60th Legislature (2026)

FLOOR SUBSTITUTE
FOR ENGROSSED

HOUSE BILL NO. 4440

By: Hilbert and Lepak of the
House

and

Paxton of the Senate

FLOOR SUBSTITUTE

An Act relating to the state Medicaid program;
directing the Secretary of State to refer to the
people for their approval or rejection a proposed
amendment to Section 2 of Article XXV-A of the
Oklahoma Constitution; removing prohibition for
imposing certain eligibility restrictions; directing
the Secretary of State to refer to the people for
their approval or rejection a proposed amendment to
repeal Sections 1, 2, 3, and 4 of Article XXV-A of
the Oklahoma Constitution, which relate to Medicaid
expansion; making repealers contingent upon certain
federal action; ordering a legislative referendum;
defining terms; requiring state to provide certain
medical assistance; requiring Oklahoma Health Care
Authority to maximize certain federal funding; making
provisions contingent upon certain federal action;
providing ballot title; ordering special election on
certain date; providing for codification; and
directing filing.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

1 SECTION 1. The Secretary of State shall refer to the people for
2 their approval or rejection, as and in the manner provided by law, a
3 proposed amendment to Section 2 of Article XXV-A of the Oklahoma
4 Constitution to read as follows:

5 Section 2. ~~A.~~ In addition to those otherwise eligible for
6 medical assistance under Oklahoma's Medicaid program, the State
7 shall provide medical assistance under Oklahoma's Medicaid program
8 to Low Income Adults.

9 ~~B. No greater or additional burdens or restrictions on~~
10 ~~eligibility or enrollment shall be imposed on persons eligible for~~
11 ~~medical assistance pursuant to this Article than on any other~~
12 ~~population eligible for medical assistance under Oklahoma's Medicaid~~
13 ~~program.~~

14 SECTION 2. The Secretary of State shall refer to the people for
15 their approval or rejection, as and in the manner provided by law, a
16 proposed amendment to repeal Sections 1, 2, 3, and 4 of Article XXV-
17 A of the Oklahoma Constitution. Such repeal will only occur if the
18 federal medical assistance percentage (FMAP) established under 42
19 U.S.C., Section 1396d(y) is reduced below ninety percent (90%).

20 SECTION 3. Pursuant to Section 3 of Article V of the Oklahoma
21 Constitution, there is hereby ordered the following legislative
22 referendum which shall be filed with the Secretary of State and
23 addressed to the Governor of the state, who shall submit the same to
24 the people for their approval or rejection at a special election to

1 be held throughout the State of Oklahoma on the date of August 25,
2 2026.

3 SECTION 4. NEW LAW A new section of law to be codified
4 in the Oklahoma Statutes as Section 1011.26 of Title 56, unless
5 there is created a duplication in numbering, reads as follows:

6 A. As used in this section:

7 1. "Low-income adults" refers to those individuals over
8 eighteen (18) years of age and under sixty-five (65) years of age
9 whose income does not exceed one hundred thirty-three percent (133%)
10 of the federal poverty level, as described by and using the income
11 methodology provided in the federal Medicaid statute at 42 U.S.C.,
12 Section 1396a(a)(10)(A)(i)(VIII), and who meet applicable
13 nonfinancial eligibility conditions for Medicaid under 42 C.F.R.,
14 Part 435, Subpart E;

15 2. "Medical assistance" means payment of part or all of the
16 cost of the care and services, or the care and services themselves,
17 or both, as provided in the federal Medicaid statute, 42 U.S.C.,
18 Section 1396 et seq.; and

19 3. "Oklahoma Health Care Authority" refers to the single state
20 agency responsible for administering the state Medicaid program
21 pursuant to 42 U.S.C., Section 1396a(a)(5).

22 B. In addition to those otherwise eligible for medical
23 assistance under the state Medicaid program, the state shall provide
24

1 medical assistance under the state Medicaid program to low-income
2 adults.

3 C. The Oklahoma Health Care Authority shall take all actions
4 necessary to maximize federal financial participation in funding
5 medical assistance pursuant to this section.

6 D. The provisions of this section shall only become effective
7 if the federal medical assistance percentage (FMAP) established
8 under 42 U.S.C., Section 1396d(y) is reduced below ninety percent
9 (90%).

10 SECTION 5. The proposed Constitutional amendment as set forth
11 in SECTION 2 of this act and the statutory provisions as set forth
12 in SECTION 4 of this act shall only become effective if the federal
13 medical assistance percentage (FMAP) established under 42 U.S.C.,
14 Section 1396d(y) is reduced below ninety percent (90%).

15 SECTION 6. The Ballot Title for the proposed Constitutional
16 amendments as set forth in SECTIONS 1 and 2 of this act and the
17 legislative referendum as ordered in SECTION 3 of this act and as
18 set forth in SECTION 4 of this act shall be in the following form:

19 BALLOT TITLE

20 Legislative Referendum No. _____ State Question No. _____

21 THE GIST OF THE PROPOSITION IS AS FOLLOWS:

22 This measure amends Section 2 of Article 25-A of the Oklahoma
23 Constitution. It would remove the prohibition against enacting
24 additional restrictions on eligibility for Medicaid.

Additionally, if federal funding for the Medicaid expansion population drops below 90%, this measure will repeal Sections 1, 2, 3, and 4 of Article 25-A of the Oklahoma Constitution and will enact substantially the same language related to Medicaid expansion from the repealed constitutional provisions into the Oklahoma Statutes. The statutes could be amended, repealed, or otherwise modified by the Legislature pursuant to the same procedures that allow enactment of laws during any regular or extraordinary session of the Legislature.

SHALL THE PROPOSAL BE APPROVED?

FOR THE PROPOSAL — YES

AGAINST THE PROPOSAL – NO

SECTION 7. A special election is hereby ordered to be held throughout the State of Oklahoma on the date of August 25, 2026, at which time the proposed amendments to the Oklahoma Constitution as set forth in SECTION 1 and SECTION 2 of this act, and the legislative referendum as ordered in SECTION 3 of this act and as set forth in SECTION 4 of this act, shall be submitted to the people of Oklahoma for their approval or rejection as and in the manner provided by law.

SECTION 8. The Chief Clerk of the House of Representatives shall, immediately after the passage of this act, prepare and file one copy thereof, including the Ballot Title set forth in SECTION 6

1 hereof, with the Secretary of State and one copy with the Attorney
2 General.

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4 60-2-3933 DC 4/13/2026 2:00:08 PM

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